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August 3, 2026

BY EDIS

The Honorable Lisa R. Barton
Secretary to the Commission
U.S. International Trade Commission
500 E Street, S.W., Room 112
Washington, DC 20436

Re: *Certain Semiconductor Devices, Products Containing Same, and Components
Thereof, Inv. No. 337-TA-1500*

Dear Secretary Barton:

On behalf of Complainant GlobalFoundries U.S. Inc. ("GlobalFoundries"), enclosed please find Agreements to be Bound by the Protective Order for Kyle Smith.

Respectfully submitted,

/s/ Bert C. Reiser

Bert C. Reiser

*Counsel for Complainant
GlobalFoundries U.S. Inc.*

cc: Service List

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Re: *Certain Semiconductor Devices, Products Containing Same, and Components
Thereof*, Inv. No. 337-TA-1500

Dear Secretary Barton:

I am counsel to GlobalFoundries U.S. Inc. (“GlobalFoundries”), Complainant in the above-referenced proceeding. By this letter, I acknowledge that I have read and agree to the terms of the Protective Order (Order No. 1) issued by Administrative Law Judge Cameron Elliot on April 30, 2026 and the Amended Protective Order (Order No. 7) issued by Chief Administrative Law Judge Clark S. Cheney on June 29, 2026. Specifically, I agree:

- i. to be bound by the terms of the Protective Orders;
- ii. not to reveal such confidential business information to anyone other than another person designated in paragraphs 3 and 18; and
- iii. to utilize such confidential business information solely for purposes of this investigation.

I, the undersigned, on behalf of GlobalFoundries, acknowledge that information submitted for purposes of this investigation may be disclosed to and used:

- i. by the Commission, its employees and Offices, and contract personnel (a) for developing or maintaining the records of this or a related proceeding, or (b) in internal investigations, audits, reviews, and evaluations relating to the programs,

August 3, 2026

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personnel, and operations of the Commission including under 5 U.S.C. Appendix 3; or

- ii. by U.S. government employees and contract personnel, solely for cybersecurity purposes. I understand that all contract personnel will sign appropriate nondisclosure agreements.

Respectfully submitted,

/s/ Kyle Smith

Kyle Smith

cc: Service List

EXHIBIT A

**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, Kyle Smith [print or type full name], state: My
business address is 2112 Pennsylvania Ave., NW, Washington, DC 20037

My present employers are Cleary Gottlieb Steen & Hamilton LLP;

My present occupations or job descriptions are Counsel for Complainant;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all **HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION** provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on August 3, 2026.

Kyle Smith
[Printed Name]
/s/ Kyle Smith
[Signature]

CERTIFICATE OF SERVICE

It is hereby certified that copies of the foregoing **AGREEMENTS TO BE BOUND BY THE PROTECTIVE ORDER** were served on August 3, 2026 as follows:

The Honorable Lisa R. Barton Secretary to the Commission U.S. International Trade Commission 500 E Street, SW, Room 112 Washington, DC 20436	BY EDIS
The Honorable Clark S. Cheney Chief Administrative Law Judge U.S. International Trade Commission 500 E Street, SW, Room 317 Washington, DC 20436	By Email and Box: Cheney1500@usitc.gov
Stephen R. Smith COOLEY LLP 1299 Pennsylvania Ave., N.W. Suite 700 Washington, D.C. 20004 <i>Counsel for Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor, Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC</i>	By Email: TowerITC@cooley.com

/s/ Erika J. Weinstein

Erika J. Weinstein

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